SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

This Software-as-a-Service Subscription Agreement (the "**Agreement**") is made as of December 14, 2026 (the "**Effective Date**") between **BookWave Distribution Inc** (the "**Supplier**") and **Seabright Hotels & Resorts Inc** (the "**Customer**"), a hotel group that owns and operates six (6) hotels (each a "**Property**" and together the "**Properties**"). This Agreement is a Supplier draft that has not been signed and is not binding until executed by both parties.

1. DEFINITIONS

"**Services**" means the hosted distribution, booking and related software services made available by the Supplier to the Customer at the Properties, as described in this Agreement. "**Customer Data**" means data entered into or generated by the Customer's use of the Services, including Personal Data. "**Personal Data**" means information relating to an identified or identifiable individual. "**Fees**" means the fees stated in Section 4.

2. SERVICES AND SCOPE

2.1 The Supplier grants the Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Services at the Properties for the Customer's internal business operations.

2.2 The Services are provided on an "as made available" basis in the form and with the functionality determined by the Supplier from time to time. The Supplier may modify, update or discontinue features of the Services provided that it does not materially reduce the core functionality of the Services during the Term.

2.3 The Customer shall be responsible for the acts and omissions of its personnel and the Properties, for the accuracy and legality of Customer Data, for maintaining its own connectivity and equipment, and for the security of its credentials. The Customer shall not reverse engineer, resell, or use the Services in breach of applicable law or to build a competing product.

2.4 The Supplier may suspend access to the Services where reasonably necessary to protect the security or integrity of the Services, or where undisputed Fees are overdue, without liability for such suspension.

3. TERM AND RENEWAL

3.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until December 14, 2028 (the "**Initial Term**"), being a period of twenty-four (24) months.

3.2 On expiry of the Initial Term, this Agreement renews automatically for successive periods of twelve (12) months (each a "**Renewal Term**", and together with the Initial Term, the "**Term**") unless either party gives the other at least one hundred and eighty (180) days' written notice of non-renewal before the end of the then-current term.

4. FEES, COMMISSION AND PAYMENT

4.1 The Customer shall pay the Supplier annual Fees of USD 480,000. The total contract value over the Initial Term is USD 960,000.

4.2 In addition to the Fees, the commission rises to 18 percent of room revenue, and the Customer shall pay that commission on the room revenue booked through the Services at the Properties, calculated and reported in accordance with the Supplier's standard reporting procedures.

4.3 The Supplier shall invoice the Customer in accordance with its standard billing cycle. The Customer shall pay all undisputed invoices within fifteen (15) days of receipt of a valid invoice.

4.4 The Customer shall notify the Supplier in writing of any invoice dispute, with reasons in reasonable detail, before the payment due date, and shall pay the undisputed portion on time. Amounts not disputed in this way are deemed undisputed.

4.5 Late payments accrue interest at the maximum rate permitted by applicable law, from the due date until paid. All Fees and commission are exclusive of taxes, which the Customer shall bear, other than taxes on the Supplier's net income. Fees are non-refundable except as expressly stated in this Agreement.

5. SERVICE LEVELS

5.1 The Supplier shall use commercially reasonable efforts to make the Services available at least 98.0% of the time in each calendar month, excluding scheduled maintenance, emergency maintenance, force majeure events, failures of third-party networks or services, the Customer's equipment or acts, and suspension under Section 2.4.

5.2 The Supplier shall notify the Customer of a Security Incident affecting Customer Data within one hundred and twenty (120) hours after the Supplier confirms the Security Incident. "**Security Incident**" means a confirmed breach of security leading to the unauthorised access to or disclosure of Customer Data in the Supplier's custody.

5.3 Availability shall be measured by the Supplier's monitoring systems, which are conclusive absent manifest error. The remedies in this Section 5 are, to the extent permitted by law, the Customer's sole and exclusive remedy for any failure to meet the service level.

6. DATA PROTECTION

6.1 The Services involve the processing of Personal Data of the Customer's customers and employees. The Customer is responsible for ensuring it has all necessary notices, consents and lawful bases for the Supplier to process Personal Data for the purpose of providing the Services.

6.2 The Supplier shall process Personal Data only to provide, secure and support the Services and as otherwise permitted by this Agreement, and shall maintain reasonable technical and organizational security measures appropriate to the nature of the Personal Data.

6.3 The Supplier may use sub-contractors and hosting providers in providing the Services and remains responsible for their performance of its obligations to the extent required by law. The

Supplier may use aggregated and de-identified data derived from the Services for analytics and service improvement.

6.4 On expiry or termination, the Supplier shall make Customer Data available for retrieval for a reasonable period, after which it may delete it in accordance with its retention practices.

7. INTELLECTUAL PROPERTY

7.1 The Supplier and its licensors own all right, title and interest in the Services, the software, documentation, and any improvements, feedback-based modifications and derivative works, and no rights are granted except as expressly set out in this Agreement.

7.2 The Customer retains ownership of Customer Data and grants the Supplier a non-exclusive license during the Term to host, copy, process and use Customer Data to provide the Services and exercise its rights under this Agreement.

8. CONFIDENTIALITY

8.1 Each party shall keep confidential all non-public information of the other party disclosed in connection with this Agreement that is marked confidential or would reasonably be understood to be confidential ("**Confidential Information**"), use it only for the purposes of this Agreement, and disclose it only to personnel, advisers and contractors who need to know it and are bound by equivalent obligations.

8.2 Confidential Information excludes information that is or becomes public through no fault of the recipient, was lawfully known to or independently developed by the recipient, or is lawfully received from a third party without restriction. A party may disclose Confidential Information where required by law, after giving the other party notice where lawful.

8.3 The obligations in this Section 8 survive for two (2) years after this Agreement ends.

9. WARRANTIES AND DISCLAIMERS

9.1 The Supplier warrants that it will provide the Services with reasonable skill and care. No express warranty period applies, and this Section 9.1 is the only warranty given in respect of the Services.

9.2 Each party warrants that it has the authority to enter into this Agreement.

9.3 EXCEPT AS EXPRESSLY STATED IN THIS SECTION 9, THE SERVICES ARE PROVIDED WITHOUT WARRANTY OF ANY KIND, AND TO THE FULLEST EXTENT PERMITTED BY LAW THE SUPPLIER DISCLAIMS ALL OTHER WARRANTIES, CONDITIONS AND REPRESENTATIONS, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT. THE SUPPLIER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR SECURE, THAT DEFECTS WILL BE CORRECTED, OR THAT THE SERVICES WILL ACHIEVE ANY PARTICULAR BOOKING VOLUME, OCCUPANCY OR REVENUE RESULT.

10. INDEMNITY

10.1 The Supplier shall defend the Customer against any third-party claim alleging that the Customer's authorized use of the Services infringes that third party's intellectual property rights, and shall pay damages finally awarded or settlements agreed by the Supplier, provided the Customer promptly notifies the Supplier, allows it sole control of the defense and settlement, and cooperates reasonably. The Supplier has no obligation for claims arising from Customer Data, modifications not made by the Supplier, combinations with other products, or use in breach of this Agreement. If a claim arises, the Supplier may procure the right to continue use, modify the Services, or terminate the affected Services. This Section 10.1 states the Supplier's entire liability for infringement claims.

10.2 The Customer shall defend and indemnify the Supplier against third-party claims, and resulting losses, damages and costs, arising from Customer Data, the Customer's or the Properties' use of the Services in breach of this Agreement or applicable law, or the Customer's failure to obtain required notices or consents for Personal Data.

11. LIMITATION OF LIABILITY

11.1 SUBJECT TO SECTION 11.4, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF STATUTORY DUTY OR OTHERWISE, IS LIMITED TO 0.25 TIMES THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

11.2 SUBJECT TO SECTION 11.4, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, CONSEQUENTIAL, SPECIAL, EXEMPLARY OR PUNITIVE LOSS OR DAMAGE, OR FOR LOSS OF PROFITS, REVENUE, BOOKINGS, BUSINESS, GOODWILL OR ANTICIPATED SAVINGS, LOSS OR CORRUPTION OF DATA, OR COST OF SUBSTITUTE SERVICES, HOWEVER ARISING AND EVEN IF ADVISED OF THEIR POSSIBILITY.

11.3 The Supplier shall have no liability for losses arising from internet or telecommunications failures, third-party systems or channels, the acts or omissions of the Customer or the Properties, unauthorised access resulting from compromised Customer credentials, or events outside its reasonable control.

11.4 Nothing in this Agreement limits or excludes liability that cannot lawfully be limited or excluded, including liability for fraud. The Customer's obligation to pay Fees and commission is not subject to the limit in Section 11.1.

12. TERMINATION

12.1 Neither party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with this Section 12.

12.2 Either party may terminate this Agreement by written notice if the other party commits a material breach that is not remedied within thirty (30) days after written notice describing the breach in reasonable detail, or if the other party becomes insolvent, makes an assignment for the benefit of creditors, or is subject to bankruptcy or similar proceedings.

12.3 On termination or expiry, the Customer's right to use the Services ends, and all Fees and commission accrued up to the effective date of termination, and any unpaid Fees for the then-current term where the Supplier has terminated for the Customer's breach, remain payable. Sections 1, 4 (as to accrued amounts), 7, 8, 9, 10, 11, 13 and 14, and any provision which by its nature is intended to survive, survive termination or expiry.

13. GENERAL PROVISIONS

13.1 **Governing Law and Jurisdiction.** This Agreement and any dispute arising out of or in connection with it are governed by the laws of Nevada, without regard to conflict of laws principles. The courts located in Nevada have exclusive jurisdiction.

13.2 **Assignment.** The Customer may not assign or transfer this Agreement or any rights under it without the Supplier's prior written consent. The Supplier may assign this Agreement to an affiliate or to a successor to all or substantially all of its relevant business on notice to the Customer.

13.3 **Notices.** Notices must be in writing and delivered by hand, recognized courier or email to the address a party has notified to the other for this purpose, and are deemed received on delivery or, for email, on transmission absent a delivery-failure message.

13.4 **Force Majeure.** Neither party is liable for delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control.

13.5 **Entire Agreement.** This Agreement constitutes the entire agreement between the parties on its subject matter and supersedes all prior proposals, representations and understandings. Customer purchase-order or other terms do not apply. Amendments must be in writing and signed by both parties.

13.6 **Relationship; Waiver; Severability.** The parties are independent contractors. No failure or delay in exercising a right operates as a waiver. If any provision is held unenforceable, the remainder continues in effect and the provision shall be enforced to the maximum extent permitted.

13.7 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature.

14. SIGNATURES

This Agreement is a draft and has not been executed.

BookWave Distribution Inc

Signature: _____

Name: _____

Title: _____

Date: _____

Seabright Hotels & Resorts Inc

Signature: _____

Name: _____

Title: _____

Date: _____